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THE NATIONAL ARCHIVES

FEDERAL REGISTER

OF THE UNITED STATES

VOLUME I — 1934 — NUMBER 59

Washington, Thursday, June 4, 1936

PRESIDENT OF THE UNITED STATES.

EXECUTIVE ORDER [1]

CACHE NATIONAL FOREST

Utah

By virtue of and pursuant to the authority vested in me by section 24 of the act of March 3, 1891, ch. 561, 26 Stat. 1095, 1103, as amended (U. S. C., title 16, sec. 471), and the act of June 4, 1897, ch. 2, 30 Stat. 11, 36 (U. S. C., title 16, sec. 473), and upon the recommendation of the Secretary of Agriculture, it is ordered that the following-described lands in the State of Utah be, and they are hereby, included in and made a part of the Cache National Forest;

SALT LAKE MERIDIAN

T. 5 N., R. 1 E., secs. 2 to 8, inclusive;
T. 6 N., R. 1 E., secs. 4 to 9, inclusive, W½ sec. 10, secs. 15 to 23, inclusive, S½ sec. 25, secs. 26 to 36, inclusive
T. 7 N., R. 1 E., secs. 12 and 14, W½ Sec. 18, sec. 24, NW¼, S½ sec. 30, secs. 31 and 32, W½ sec. 33;
T. 8 N., R. 1 E., secs. 4, 8, 18, and 20;
T. 9 N., R. 1 E., sec. 30;
T. 10 N., R. 1 E., sec. 12;
T. 6 N., R. 2 E., sec. 12, S½ sec. 14;
T. 7 N., R. 2 E., secs. 10, 12, 14, 18, 20, 22, 26, 28, 30, 34;
T. 10 N., R. 2 E., sec. 1, S½S½ sec. 3, S½ sec. 8, secs. 10, 11, and 12;
T. 6 N., R. 3 E., secs. 6, 26, 28, 30, and 34;
T. 7 N., R. 3 E., secs. 1, 10, 22, 24, and 26;
T. 9 N., R. 3 E., secs. 19, 20, 24, and 27;
T. 10 N., R. 3 E., sec. 1 E½E½ sec. 10, secs. 11, 14, 15, 17, 20, 21, 23, 25, 26, 29, and 35;
T. 6 N., R. 4 E., secs. 4, 6, 8, 10, 14, 22, 26, 28, and 34;
T. 7 N., R. 4 E., secs. 1, 5, 6, 8, 9, 11, 14, 18, and 28;
T. 9 N., R. 4 E., sec. 1, S½ sec. 10, secs. 11 to 15, inclusive, S½ sec. 20, S½ sec. 21, secs. 22, 24, 25, 28, and 33;
T. 10 N., R. 4 E., secs. 8, 9, 10, 17, 19, and 30;
T. 11 N., R. 4 E., sec. 1, E½ sec. 9, secs. 12, 13, and 21;
T. 6 N., R. 5 E., secs. 5, 12, 14, 18, 24, 26, and 30;
T. 7 N., R. 5 E., secs. 4, 8, 10, 12, 14, 18, 22, 24, 28, and 30;
T. 9 N., R. 5 E., sec. 6;
T. 10 N., R. 5 E., secs. 3, 9, 10, E½ sec. 17, E½ sec. 20, secs. 21 and 28, E½ sec. 29, secs. 31 and 33;
T. 11 N., R. 5 E., secs. 5 to 8, inclusive, secs. 15, 17, 18, 22, 23, 26, and 35;
T. 6 N., R. 6 E., secs. 6, 8, 18, and 20;
T. 7 N., R. 6 E., secs. 20, 22, 28, and 30;
T. 5 N., R. 1 W., secs. 1, 2, 11, and 12;
T. 6 N., R. 1 W., secs. 1, 2, 11, 12, 13, 14, 23, 24, 25, 26, 35, and 36;
T. 7 N., R. 1 W., secs. 1 to 11, inclusive, NW¼, S½ sec. 12; secs. 13 to 17, inclusive, N½ sec. 20, N½, SE¼ sec. 21, secs. 22 to 26, inclusive, secs. 35 and 36;
T. 8 N., R. 1 W., all;
T. 9 N., R. 1 W., all
T. 7 N., R. 2 W., secs. 1 and 12;
T. 8 N., R. 2 W., secs. 1, 12, 13, 24, 25, and 36; aggregating 187,464.95 acres.

The reservation made by this order shall as to all of the above-described lands which are at this date legally appropriated under the public-land laws or reserved for any public purposes other than classification, flood control, or watershed protection, be subject to, and shall not interfere with or defeat, legal rights under such appropriations, or prevent the use for such public purposes of lands so reserved, so long as such appropriations are legally maintained or such reservations remain in force; and this reservation supersedes all existing withdrawals and reservations of the above-described lands for purposes of classification, flood control, and watershed protection.

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
May 22, 1936.

[No. 7378]

[F. R. Doc. 521—Filed, May 23, 1936; 11:36 a. m.]

[1] Corrected print.

TREASURY DEPARTMENT.

Bureau of Customs.

[T. D. 48358]

CUSTOMS REGULATIONS AMENDED

PARAGRAPH (A) OF ARTICLE 832, CUSTOMS REGULATIONS OF 1931, AMENDED TO PROVIDE FOR BULLETIN NOTICE ON CUSTOMS FORM 5171 OF LIQUIDATION OF APPRAISEMENT ENTRIES, CUSTOMS FORM 7500.—ARTICLE 1147, CUSTOMS REGULATIONS OF 1931, AS AMENDED BY T. D. 47536, FURTHER AMENDED TO REFER SPECIFICALLY TO APPRAISEMENT ENTRIES

To Collectors of Customs and Others Concerned:

Pursuant to authority contained in Sections 505 and 624 of the Tariff Act of 1930, paragraph (a) of Article 832, of the Customs Regulations of 1931, is hereby amended to read as follows:

ART. 832. *Appraisement, baggage, informal, and mail entries.*—(a) Appraisement entries, customs Form 7500, baggage entries, customs Form 6059 or 6063, informal entries, customs Form 5119, and mail entries, customs Form 3419 or 3420, shall be formally liquidated after return by the comptroller, and a carbon copy of the bulletin, customs Form 5171, covering such entries, posted as the notice of liquidation. All such entries ready for liquidation during any one month may be liquidated on any convenient day during that month. The date of posting shall be stamped on the bulletin as the date of liquidation of all liquidated entries covered thereby.

Also, Article 1147 of the Customs Regulations of 1931, as amended by T. D. 47536, is hereby further amended to read as follows:

ART. 1147. *Appraisement, baggage, informal, and mail entries.*—Appraisement entries on customs Form 7500 as paid or passed free; baggage entries on customs Form 6059 or 6063 as paid; informal entries on customs Form 5119 as paid or passed free, and mail entries on customs Form 3419 or 3420 as paid, passed free, or cancelled, shall be separately recorded and scheduled on customs

FEDERAL REGISTER

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The Administrative Committee consists of the Archivist or Acting Archivist, an officer of the Department of Justice designated by the Attorney General, and the Public Printer or Acting Public Printer.

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Form 5171 by serial number. An additional copy of the schedule will be prepared for posting as a notice of liquidation. (Art. 832.)

[SEAL] FRANK DOW,
Acting Commissioner of Customs.

Approved, May 29, 1936.

WAYNE C. TAYLOR,
Acting Secretary of the Treasury.

[F. R. Doc. 808—Filed, June 3, 1936; 10:00 a. m.]

FEDERAL POWER COMMISSION.

ORDER SETTING HEARING

[IT-5386 (M)]

The Union Gas & Electric Company and The Cincinnati Gas & Electric Company having filed on May 5, 1936, their joint application under section 203 (a), Part II, of the Federal Power Act for the merger of the former company into the latter company, including the transfer of all the property and assets of said former company to said latter company, for a consideration represented only by an increase in the value of the common stock of The Cincinnati Gas & Electric Company by reason of such merger and acquisition:

It is ordered:

That a hearing on said application be held on Friday, June 19, 1936, at 10 a. m., at the Commission's hearing room, Room 417, Machinists Building, 815 Mt. Vernon Place NW., Washington, D. C.

Adopted by the Commission, June 2, 1936.

[SEAL] LEON M. FUQUAY,
Acting Secretary.

[F. R. Doc. 807—Filed, June 3, 1936; 9:24 a. m.]

FEDERAL REGISTER ACT

[PUBLIC—No. 220—74TH CONGRESS; 49 STAT. 500-503]

AN ACT To provide for the custody of Federal proclamations, orders, regulations, notices, and other documents, and for the prompt and uniform printing and distribution thereof.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That the Archivist of the United States, acting through a division established by him in the National Archives Establishment, hereinafter referred to as the "Division", is charged with the custody and, together with the Public Printer, with the prompt and uniform printing and distribution of the documents required or authorized to be published under section 5. There shall be at the head of the Division a director, appointed by the President, who shall act under the general direction of the Archivist of the United States in carrying out the provisions of this Act and the regulations prescribed hereunder, who shall receive a salary, to be fixed by the President, not to exceed $5,000 a year.

SEC. 2. The original and two duplicate originals or certified copies of any document required or authorized to be published under section 5 shall be filed with the Division, which shall be open for that purpose during all hours of the working days when the Archives Building shall be open for official business. The Director of the Division shall cause to be noted on the original and duplicate originals or certified copies of each document the day and hour of filing thereof: *Provided*, That when the original is issued, prescribed, or promulgated outside of the District of Columbia and certified copies are filed before the filing of the original, the notation shall be of the day and hour of filing of the certified copies. Upon such filing, at least one copy shall be immediately available for public inspection in the office of the Director of the Division. The original shall be retained in the archives of the National Archives Establishment and shall be available for inspection under regulations to be prescribed by the Archivist. The Division shall transmit immediately to the Government Printing Office for printing, as provided in this Act, one duplicate original or certified copy of each document required or authorized to be published under section 5. Every Federal agency shall cause to be transmitted for filing as herein required the original and the duplicate originals or certified copies of all such documents issued, prescribed, or promulgated by the agency.

SEC. 3. All documents required or authorized to be published under section 5 shall be printed and distributed forthwith by the Government Printing Office in a serial publication designated the "Federal Register." It shall be the duty of the Public Printer to make available the facilities of the Government Printing Office for the prompt printing and distribution of the Federal Register in the manner and at the times required in accordance with the provisions of this Act and the regulations prescribed hereunder. The contents of the daily issues shall be indexed and shall comprise all documents, required or authorized to be published, filed with the Division up to such time of the day immediately preceding the day of distribution as shall be fixed by regulations hereunder. There shall be printed with each document a copy of the notation, required to be made under section 2, of the day and hour when, upon filing with the Division, such document was made available for public inspection. Distribution shall be made by delivery or by deposit at a post office at such time in the morning of the day of distribution as shall be fixed by such regulations prescribed hereunder. The prices to be charged for the Federal Register may be fixed by the administrative committee established by section 6 without reference to the restrictions placed upon and fixed for the sale of Government publications by section 1 of the Act of May 11, 1922, and section 307 of the Act of June 30, 1932 (U. S. C., title 44, secs. 72 and 72a), and any amendments thereto.

SEC. 4. As used in this Act, unless the context otherwise requires, the term "document" means any Presidential proclamation or Executive order and any order, regulation, rule, certificate, code of fair competition, license, notice, or

similar instrument issued, prescribed, or promulgated by a Federal agency; the terms "Federal agency" or "agency" mean the President of the United States, or any executive department, independent board, establishment, bureau, agency, institution, commission, or separate office of the administrative branch of the Government of the United States but not the legislative or judicial branches of the Government; and the term "person" means any individual, partnership, association, or corporation.

SEC. 5. (a) There shall be published in the Federal Register (1) all Presidential proclamations and Executive orders, except such as have no general applicability and legal effect or are effective only against Federal agencies or persons in their capacity as officers, agents, or employees thereof; (2) such documents or classes of documents as the President shall determine from time to time have general applicability and legal effect; and (3) such documents or classes of documents as may be required so to be published by Act of the Congress: *Provided*, That for the purposes of this Act every document or order which shall prescribe a penalty shall be deemed to have general applicability and legal effect.

(b) In addition to the foregoing there shall also be published in the Federal Register such other documents or classes of documents as may be authorized to be published pursuant hereto by regulations prescribed hereunder with the approval of the President, but in no case shall comments or news items of any character whatsoever be authorized to be published in the Federal Register.

SEC. 6. There is established a permanent Administrative Committee of three members consisting of the Archivist or Acting Archivist, who shall be chairman, an officer of the Department of Justice designated by the Attorney General, and the Public Printer or Acting Public Printer. The Director of the Division shall act as secretary of the committee. The committee shall prescribe, with the approval of the President, regulations for carrying out the provisions of this Act. Such regulations shall provide, among other things: (a) The manner of certification of copies required to be certified under section 2, which certification may be permitted to be based upon confirmed communications from outside of the District of Columbia; (b) the documents which shall be authorized pursuant to section 5 (b) to be published in the Federal Register; (c) the manner and form in which the Federal Register shall be printed, reprinted, compiled, indexed, bound, and distributed; (d) the number of copies of the Federal Register which shall be printed, reprinted, and compiled, the number which shall be distributed without charge to Members of Congress, officers and employees of the United States, or any Federal agency for their official use, and the number which shall be available for distribution to the public; and (e) the prices to be charged for individual copies of, and subscriptions to, the Federal Register and reprints and bound volumes thereof.

SEC. 7. No document required under section 5 (a) to be published in the Federal Register shall be valid as against any person who has not had actual knowledge thereof until the duplicate originals or certified copies of the document shall have been filed with the Division and a copy made available for public inspection as provided in section 2; and, unless otherwise specifically provided by statute, such filing of any document, required or authorized to be published under section 5, shall, except in cases where notice by publication is insufficient in law, be sufficient to give notice of the contents of such document to any person subject thereto or affected thereby. The publication in the Federal Register of any document shall create a rebuttable presumption (a) that it was duly issued, prescribed, or promulgated; (b) that it was duly filed with the Division and made available for public inspection at the day and hour stated in the printed notation; (c) that the copy contained in the Federal Register is a true copy of the original; and, (d) that all requirements of this Act and the regulations prescribed hereunder relative to such document have been complied with. The contents of the Federal Register shall be judicially noticed and, without prejudice to any other mode of citation, may be cited by volume and page number.

SEC. 8. Whenever notice of hearing or of opportunity to be heard is required or authorized to be given by or under an Act of the Congress, or may otherwise properly be given, the notice shall be deemed to have been duly given to all persons residing within the continental United States (not including Alaska), except in cases where notice by publication is insufficient in law, if said notice shall be published in the Federal Register at such time that the period between the publication and the date fixed in such notice for the hearing or for the termination of the opportunity to be heard shall be (a) not less than the time specifically prescribed for the publication of the notice by the appropriate Act of the Congress; or (b) not less than fifteen days when no time for publication is specifically prescribed by the Act, without prejudice, however, to the effectiveness of any notice of less than fifteen days where such shorter period is reasonable.

SEC. 9. Every payment made for the Federal Register shall be covered into the Treasury as a miscellaneous receipt. The cost of printing, reprinting, wrapping, binding, and distributing the Federal Register and any other expenses incurred by the Government Printing Office in carrying out the duties placed upon it by this Act shall be borne by the appropriations to the Government Printing Office and such appropriations are hereby made available, and are authorized to be increased by such additional sums as are necessary for such purposes, such increases to be based upon estimates submitted by the Public Printer. The purposes for which appropriations are available and are authorized to be made under section 10 of the Act entitled "An Act to establish a National Archives of the United States Government, and for other purposes" (48 Stat. 1122) are enlarged to cover the additional duties placed upon the National Archives Establishment by the provisions of this Act. Copies of the Federal Register mailed by the Government shall be entitled to the free use of the United States mails in the same manner as the official mail of the executive departments of the Government. The cost of mailing the Federal Register to officers and employees of Federal agencies in foreign countries shall be borne by the respective agencies.

SEC. 10. The provisions of section 2 shall become effective sixty days after the date of approval of this Act and the publication of the Federal Register shall begin within three business days thereafter: *Provided*, That the appropriations involved have been increased as required by section 9 of this Act. The limitations upon the effectiveness of documents required, under section 5 (a), to be published in the Federal Register shall not be operative as to any document issued, prescribed, or promulgated prior to the date when such document is first required by this or subsequent Act of the Congress or by Executive order to be published in the Federal Register.

SEC. 11. Within six months after the approval of this Act each agency shall prepare and file with the committee a complete compilation of all documents which have been issued or promulgated prior to the date documents are required or authorized by this Act to be published in the Federal Register and which are still in force and effect and relied upon by the agency as authority for, or invoked or used by it in the discharge of, any of its functions or activities. The committee shall within sixty days thereafter report with respect thereto to the President, who shall determine which of such documents have general applicability and legal effect, and shall authorize the publication thereof in a special or supplemental edition or issue of the Federal Register. Such special or supplemental editions or issues shall be distributed in the same manner as regular editions or issues, and shall be included in the bound volumes of the Federal Register as supplements thereto.

SEC. 12. Nothing in this Act shall be construed to apply to treaties, conventions, protocols, and other international agreements, or proclamations thereof by the President.

SEC. 13. All Acts or parts of Acts in conflict with this Act are hereby repealed insofar as they conflict herewith.

SEC. 14. This Act may be cited as the "Federal Register Act."

Approved, July 26, 1935.